

[Query](#) [Reports](#) [Utilities](#) [Help](#) [Log Out](#)

JD1,TERMED

U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:20-cv-00076-RBJ

Martin v. Public Service Company of Colorado
Assigned to: Judge R. Brooke Jackson
Referred to: Magistrate Judge Scott T. Varholak (Settlement)
Case in other court: District Court, City & County of Denver,
Colorado, 2019cv34888
U.S. Court of Appeals, 10th Cir., 21-01354
Cause: 28:1441er - Removal - Employment Discrimination (Race)

Date Filed: 01/09/2020
Date Terminated: 09/30/2021
Jury Demand: Plaintiff
Nature of Suit: 442 Civil Rights: Jobs
Jurisdiction: Federal Question

Plaintiff**Anita Martin**

represented by **Anne Thomas Sulton**
Sulton Law Offices
P.O.Box 371335
Milwaukee, WI 53237
360-870-6000
Email: annesulton@gmail.com
ATTORNEY TO BE NOTICED

William F. Sulton
The Sulton Law Firm LLC
2745 N Dr. Martin Luther King, Jr. Drive
Ste 202
Milwaukee, WI 53212
414-477-0088
Fax: 414-250-7676
Email: william@sultonlaw.com
ATTORNEY TO BE NOTICED

V.

Defendant

Public Service Company of Colorado
a wholly-owned subsidiary of Xcel Energy,
Inc.
doing business as
Xcel Energy

represented by **Sarah Genevieve Nolan**
Martinez Law Group, P.C.
720 South Colorado Boulevard
South Tower
Suite 1020-S
Denver, CO 80246
303-597-4008
Fax: 303-597-4001
Email: nolan@mlgrouppc.com
ATTORNEY TO BE NOTICED

Meghan W. Martinez
Martinez Law Group, P.C.

720 South Colorado Boulevard
 South Tower
 Suite 1020-S
 Denver, CO 80246
 303.597.4000
 Fax: 303-597-4001
 Email: martinez@mlgrouppc.com
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
01/09/2020	1	NOTICE OF REMOVAL by Public Service Company of Colorado <i>d/b/a Xcel Energy</i> from City and County of Denver, Case Number 2019CV32819. (Filing fee \$ 400, Receipt Number 1082-7087268), filed by Public Service Company of Colorado. (Attachments: # 1 Ex. 1 - State Court Complaint and Jury Demand, # 2 Ex. 2 - State Court Civil Cover Sheet, # 3 Ex. 3 - State Court Summons, # 4 Ex. 4 - State Court Pre-Trial Order, # 5 Ex. 5 - State Court Order re Discovery Protocol, # 6 Ex. 6 - State Court Delay Reduction Order, # 7 Ex. 7 - State Court Entry of Appearance (M. Martinez), # 8 Ex. 8 - State Court Entry of Appearance (S. Nolan), # 9 Ex. 9 - State Court Waiver and Acceptance of Service, # 10 Ex. 10 - State Court Notice of Filing Notice of Removal)(Martinez, Meghan) (Entered: 01/09/2020)
01/10/2020	2	NOTICE of Entry of Appearance by Anne Thomas Sulton on behalf of Anita MartinAttorney Anne Thomas Sulton added to party Anita Martin(pty:pla) (Sulton, Anne) (Entered: 01/10/2020)
01/10/2020	3	FIRST AND FINAL NOTICE TO ALL ATTORNEY(S) AND UNREPRESENTED PARTIES IN REMOVED, TRANSFERRED, OR OTHER CASES. To receive any further notice in a case removed or transferred to this court, or special matters including discovery disputes, bankruptcy appeals, or withdrawals of reference, Multi-district litigation (MDL), etc., all attorneys and unrepresented parties must enter an appearance under D.C.COLO.LAttyR 5(a). An attorney must be an active member of this court's bar and be in good standing in accordance with D.C.COLO.LAttyR 3. A waiver of the fee for bar admission may apply in limited situations. (Text Only Entry) (alave,) (Entered: 01/10/2020)
01/10/2020	4	COMPLAINT against Public Service Company of Colorado, filed by Anita Martin.(alave,) (Entered: 01/10/2020)
01/10/2020	5	Case assigned to Judge R. Brooke Jackson and drawn to Magistrate Judge Scott T. Varholak. Text Only Entry. (alave,) (Entered: 01/10/2020)
01/10/2020	6	Magistrate Judge consent form issued pursuant to 28 U.S.C. 636(c). (alave,) (Entered: 01/10/2020)
01/10/2020	7	ORDER TO SET SCHEDULING CONFERENCE: This matter comes before the Court sua sponte. The parties are ordered to set an initial scheduling conference in this Court (with Judge Jackson) pursuant to Fed. R. Civ. P. 16(b) and D.C.COLO.LCivR 16.1 no later than 45 days after the answer, motion to dismiss or other response to the complaint is filed. The parties are directed to jointly contact Chambers by telephone at (303) 844-4694 or by email at Jackson_Chambers@cod.uscourts.gov to obtain a scheduling conference date. By Judge R. Brooke Jackson on 1/10/2020. (rbjsec.) (Entered: 01/10/2020)
01/10/2020	8	NOTICE of Filing State Court Docket Sheet by Defendant Public Service Company of Colorado (Martinez, Meghan) (Entered: 01/10/2020)

01/13/2020	9	NOTICE of Entry of Appearance of <i>Sarah G. Nolan</i> by Sarah Genevieve Nolan on behalf of Public Service Company of Colorado Attorney Sarah Genevieve Nolan added to party Public Service Company of Colorado(pty:dft) (Nolan, Sarah) (Entered: 01/13/2020)
01/13/2020	10	NOTICE of Entry of Appearance <i>Meghan W. Martinez</i> by Meghan W. Martinez on behalf of Public Service Company of Colorado (Martinez, Meghan) (Entered: 01/13/2020)
01/15/2020	11	MINUTE ORDER: A Scheduling Conference is set for 3/27/2020 at 8:30 AM in Courtroom A 902 before Judge R. Brooke Jackson. Plaintiff's counsel may appear telephonically by contacting Chambers at (303) 844-4694. By Judge R. Brooke Jackson on 1/15/2020. Text Only Entry (rbjsec.) (Entered: 01/15/2020)
01/20/2020	12	MOTION to Remand to State Court <i>ALL STATE LAW CLAIMS and REQUEST FOR ORAL ARGUMENT</i> by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 01/20/2020)
01/21/2020	13	MOTION TO DISMISS by Defendant Public Service Company of Colorado. (Martinez, Meghan) Modified on 1/29/2020 (apesa,). (Entered: 01/21/2020)
01/21/2020	14	CORPORATE DISCLOSURE STATEMENT identifying Corporate Parent Xcel Energy Inc. for Public Service Company of Colorado. (Martinez, Meghan) (Entered: 01/21/2020)
01/21/2020	15	RESPONSE re: 13 Letter <i>Re Defendant Motion to Dismiss</i> by Plaintiff Anita Martin. (Sulton, Anne) Modified on 1/29/2020 (apesa,). (Entered: 01/21/2020)
01/28/2020	16	MOTION to Stay <i>Discovery Pending Resolution of its Motion to Dismiss</i> by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 01/28/2020)
01/29/2020	17	MINUTE ORDER re: 12 MOTION to Remand to State Court ALL STATE LAW CLAIMS and REQUEST FOR ORAL ARGUMENT; 13 Letter filed by Public Service Company of Colorado; 15 Letter filed by Anita Martin; and 16 MOTION to Stay Discovery Pending Resolution of its Motion to Dismiss. The Court will consider the defendants letter to be a motion to dismiss and the plaintiffs letter to be a response. The Court requests that counsel jointly contact Chambers at jackson_chambers@cod.uscourts.gov or (303) 844-4694 to set motion to dismiss, the motion to remand, and the motion to stay discovery for a combined oral argument. No further briefing is necessary. By Judge R. Brooke Jackson on 1/29/2020. Text Only Entry (rbjsec.) (Entered: 01/29/2020)
02/04/2020	18	Joint MOTION for Protective Order by Defendant Public Service Company of Colorado. (Attachments: # 1 Proposed Order (PDF Only))(Martinez, Meghan) (Entered: 02/04/2020)
02/05/2020	19	ORDER granting 18 Joint Motion for Protective Order. By Judge R. Brooke Jackson on 2/5/2020. Text Only Entry(rbjsec.) (Entered: 02/05/2020)
02/05/2020	20	PROTECTIVE ORDER by Judge R. Brooke Jackson on 2/5/20. (jdyne,) (Entered: 02/05/2020)
02/10/2020	21	RESPONSE to 12 MOTION to Remand to State Court <i>ALL STATE LAW CLAIMS and REQUEST FOR ORAL ARGUMENT</i> filed by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4) (Martinez, Meghan) (Entered: 02/10/2020)
02/12/2020	22	MINUTE ORDER re: 12 MOTION to Remand to State Court ALL STATE LAW CLAIMS and REQUEST FOR ORAL ARGUMENT; 13 MOTION to Dismiss; 16 MOTION to Stay Discovery Pending Resolution of its Motion to Dismiss. An oral argument on the pending motions is scheduled for 4/27/2020 at 1:30 PM in Courtroom A 902 before Judge R. Brooke Jackson. The Scheduling Conference set 3/27/2020 is

		vacated. By Judge R. Brooke Jackson on 2/12/2020. Text Only Entry (rbjsec.) (Entered: 02/12/2020)
03/06/2020	23	CONSENT to Jurisdiction of Magistrate Judge by Defendant Public Service Company of Colorado All parties do not consent.. (Martinez, Meghan) (Entered: 03/06/2020)
04/06/2020	24	Unopposed MOTION to Reset <i>ORAL ARGUMENT HEARING DATE</i> by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 04/06/2020)
04/06/2020	25	ORDER granting 24 Unopposed MOTION to Reset ORAL ARGUMENT HEARING DATE. The Oral Argument set April 27, 2020 is VACATED. The Court requests that counsel jointly contact Chambers at jackson_chambers@cod.uscourts.gov within one week to reschedule. By Judge R. Brooke Jackson on 4/6/2020. Text Only Entry(rbjsec.) (Entered: 04/06/2020)
04/07/2020	26	MINUTE ORDER re: 12 MOTION to Remand to State Court ALL STATE LAW CLAIMS and REQUEST FOR ORAL ARGUMENT, 13 MOTION to Dismiss filed, and 16 MOTION to Stay Discovery Pending Resolution of its Motion to Dismiss. The Oral Argument on the pending motions has been reset for 7/16/2020 at 1:30 PM in Courtroom A 902 before Judge R. Brooke Jackson. By Judge R. Brooke Jackson on 4/7/2020. Text Only Entry (rbjsec.) (Entered: 04/07/2020)
06/23/2020	27	MINUTE ORDER re: 26 Minute Order. Due to the COVID-19 pandemic the the Combined Oral Argument set for 7/16/2020 at 1:30 p.m. will be heard telephonically. The parties shall participate by dialing toll free: 888-204-5984 and using access code: 7557338#. By Judge R. Brooke Jackson on 6/23/2020. Text Only Entry (rbjsec.) (Entered: 06/23/2020)
07/16/2020	28	MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Oral Argument Hearing held on 7/16/2020. 12 Motion to Remand to State Court and 13 Motion to Dismiss are taken under advisement. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 07/16/2020)
07/21/2020	29	ORDER finding as moot 16 MOTION to Stay Discovery Pending Resolution of its Motion to Dismiss. By Judge R. Brooke Jackson on 7/21/2020. Text Only Entry(rbjsec.) (Entered: 07/21/2020)
07/21/2020	30	ORDER denying 12 Motion to Remand to State Court; granting in part and denying in part 13 Motion to Dismiss by Judge R. Brooke Jackson on 7/21/20. (jdyne,) (Entered: 07/21/2020)
07/21/2020	31	AMENDED COMPLAINT against Public Service Company of Colorado, filed by Anita Martin.(Sulton, Anne) (Entered: 07/21/2020)
07/21/2020	32	MINUTE ORDER: Due to the COVID-19 pandemic the Court will not hold a Scheduling Conference. The Court requests that counsel confer and attempt to agree on a schedule and submit a proposed scheduling order by 8/21/2020 pointing out any areas of disagreement. Please email the proposed order to Jackson_Chambers@cod.uscourts.gov in Word format and efile into CM/ECF. The Court will review the proposed order and make such rulings as are appropriate and will provide the parties with potential trial preparation conference and trial dates for you to choose from. By Judge R. Brooke Jackson on 7/21/2020. Text Only Entry (rbjsec.) (Entered: 07/21/2020)
08/04/2020	33	ANSWER to 31 Amended Complaint by Public Service Company of Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Martinez, Meghan) (Entered: 08/04/2020)
08/06/2020	34	TRANSCRIPT of Telephonic Oral Argument held on July 16, 2020 before Judge Jackson. Pages: 1-32. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this

		filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 08/06/2020)
08/21/2020	35	Proposed Scheduling Order by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 08/21/2020)
08/26/2020	36	ORDER REFERRING CASE to Magistrate Judge Scott T. Varholak, as indicated by Judge R. Brooke Jackson on 8/26/20. (jdyne,) (Entered: 08/27/2020)
08/26/2020	37	SCHEDULING ORDER: Discovery due by 2/24/2021. Dispositive Motions due by 3/22/2021. by Judge R. Brooke Jackson on 8/26/20. (Attachments: # 1 redlined version) (jdyne,) (Entered: 08/27/2020)
08/27/2020	38	MINUTE ORDER Pursuant to 36 Order Referring Case to Magistrate Judge and 37 Scheduling Order, on or before 9/04/2020, counsel for the parties shall jointly call chambers at 303.335.2365 to set a Settlement Conference. SO ORDERED, by Magistrate Judge Scott T. Varholak on 8/27/2020. Text Only Entry (stvlcl,) (Entered: 08/27/2020)
09/04/2020	39	ORDER SETTING TRIAL AND TRIAL PREPARATION CONFERENCE: his matter is set for a five-day Jury Trial to commence on September 27, 2021 at 9:00 a.m. on the docket of Judge R. Brooke Jackson U.S. District Courthouse, Courtroom A902, 9th Floor, 901 19th Street, Denver, Colorado.A Trial Preparation Conference is set for September 1, 2021 at 1:30 p.m. By Judge R. Brooke Jackson on 9/4/2020. (rbjsec,) (Entered: 09/04/2020)
09/09/2020	40	MINUTE ORDER Setting Settlement Conference for 11/12/2020 01:00 PM in Courtroom A 402 before Magistrate Judge Scott T. Varholak, by Judge R. Brooke Jackson on 9/9/2020. (jgonz,) (Entered: 09/09/2020)
10/02/2020	41	STIPULATION for Extension of Time <i>for Defendant to Respond to Plaintiff's First Set of Written Discovery Requests to Defendant</i> by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 10/02/2020)
10/16/2020	42	MINUTE ORDER: A Telephonic Discovery Hearing is set for 10/20/2020 at 8:30 AM in Courtroom A 902 before Judge R. Brooke Jackson. The Court directs that the parties use dial-in number 1-888-204-5984 and use access code 7557338#. By Judge R. Brooke Jackson on 10/16/2020. Text Only Entry (rbjsec,) (Entered: 10/16/2020)
10/20/2020	43	MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Telephone Discovery Hearing held on 10/20/2020. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 10/20/2020)
11/12/2020	44	MINUTE ENTRY for Settlement Conference held before Magistrate Judge Scott T. Varholak on 11/12/2020. A settlement conference was held and no settlement was reached at this time. FTR: 402. (morti,) (Entered: 11/12/2020)
12/28/2020	45	STIPULATION for Extension of Time <i>for Defendant to Respond to Plaintiffs Third Written Discovery Requests to Defendant</i> by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 12/28/2020)
01/14/2021	46	MINUTE ORDER: A Telephonic Discovery Conference is set for 1/20/2021 at 10:00 AM in Courtroom A 902 before Judge R. Brooke Jackson. The Court directs that the parties

		use dial-in number 1-888-204-5984 and enter access code 7557338# when prompted. By Judge R. Brooke Jackson on 1/13/2021. Text Only Entry (rbjsec.) (Entered: 01/14/2021)
01/16/2021	47	LETTER of Intent to File Motion for Summary Judgment by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 01/16/2021)
01/20/2021	48	MINUTE ORDER: The Telephonic Discovery Conference set this morning at 10:00 a.m. is vacated. By Judge R. Brooke Jackson on 1/20/2021. Text Only Entry (rbjsec.) (Entered: 01/20/2021)
01/20/2021	49	MINUTE ORDER: A Telephonic Discovery Conference has been set for 1/22/2021 at 8:30 AM before Judge R. Brooke Jackson. The Court directs that the parties use dial-in number 1-888-204-5984 and enter access code 7557338# when prompted. By Judge R. Brooke Jackson on 1/20/2021. Text Only Entry (rbjsec.) (Entered: 01/20/2021)
01/22/2021	50	MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Telephone Discovery Hearing held on 1/22/2021. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 01/22/2021)
01/27/2021	51	TRANSCRIPT of Telephone Discovery Conference held on January 22, 2021 before Judge Jackson. Pages: 1-33. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitec,) (Entered: 01/27/2021)
01/29/2021	52	RESPONSE to 47 Letter by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 01/29/2021)
02/01/2021	53	MINUTE ORDER re: discovery by Judge R. Brooke Jackson on 2/1/21. (jdyne,) (Entered: 02/01/2021)
03/19/2021	54	Unopposed MOTION for Leave to File Excess Pages <i>re Motion for Summary Judgment</i> by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 03/19/2021)
03/22/2021	55	ORDER granting 54 Unopposed MOTION for Leave to File Excess Pages <i>re Motion for Summary Judgment</i> . Granted. With regret. By Judge R. Brooke Jackson on 3/22/2021. Text Only Entry(rbjsec.) (Entered: 03/22/2021)
03/23/2021	56	MOTION for Summary Judgment by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 03/23/2021)
03/23/2021	57	Exhibits in Support of 56 MOTION for Summary Judgment by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L, # 13 Exhibit M, # 14 Exhibit N, # 15 Exhibit O, # 16 Exhibit P, # 17 Exhibit Q, # 18 Exhibit R, # 19 Exhibit S, # 20 Exhibit T, # 21 Exhibit U, # 22 Exhibit V, # 23 Exhibit W, # 24 Exhibit X, # 25 Exhibit Y, # 26 Exhibit Z, # 27 Exhibit AA, # 28 Exhibit BB, # 29 Exhibit CC)(Martinez, Meghan) (Entered: 03/23/2021)
03/24/2021	58	Unopposed MOTION for Leave to Restrict by Defendant Public Service Company of Colorado. (Attachments: # 1 Proposed Order (PDF Only))(Martinez, Meghan) (Entered: 03/24/2021)

		03/24/2021)
03/25/2021	59	ORDER granting 58 Unopposed MOTION for Leave to Restrict. By Judge R. Brooke Jackson on 3/25/2021. Text Only Entry(rbjsec,) (Entered: 03/25/2021)
04/12/2021	60	BRIEF in Opposition to 56 MOTION for Summary Judgment filed by Plaintiff Anita Martin. (Attachments: # 1 Exhibit Declarations, # 2 Deposition Excerpts, # 3 Exhibit Defendant's Discovery Responses)(Sulton, Anne) (Entered: 04/12/2021)
04/26/2021	61	REPLY to Response to 56 MOTION for Summary Judgment filed by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit DD, # 2 Exhibit EE, # 3 Exhibit FF, # 4 Exhibit GG, # 5 Exhibit HH, # 6 Exhibit II, # 7 Exhibit JJ, # 8 Exhibit KK)(Martinez, Meghan) (Entered: 04/26/2021)
08/17/2021	62	MOTION in Limine to <i>Preclude Plaintiffs Post-Employment Evidence</i> by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Martinez, Meghan) (Entered: 08/17/2021)
08/17/2021	63	MOTION in Limine to <i>Preclude Irrelevant Me Too-Type Evidence And Prohibited Character Evidence</i> by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit A)(Martinez, Meghan) (Entered: 08/17/2021)
08/23/2021	64	MINUTE ORDER: The trial preparation conference set 9/1/2021 will be held telephonically. The Court directs that the parties use dial-in number 1-888-204-5984 and enter access code 7557338# when prompted. The Court reminds the parties that the combined proposed stipulated and disputed jury instructions should be emailed in Word format to jackson_chambers@cod.uscourts.gov at least one week in advance of the hearing. Please see this Court's Practice Standards for details. By Judge R. Brooke Jackson on 8/23/2021. Text Only Entry (rbjsec.) (Entered: 08/23/2021)
08/24/2021	65	Witness List (<i>Preliminary</i>) by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 08/24/2021)
08/25/2021	66	MOTION for Extension of Time to <i>Request for an enlargement of time to submit proposed jury instructions</i> by Plaintiff Anita Martin. (Attachments: # 1 Exhibit Communication with Defense)(Sulton, Anne) (Entered: 08/25/2021)
08/26/2021	67	ORDER granting 66 MOTION for Extension of Time to <i>Request for an enlargement of time to submit proposed jury instructions</i> by Judge R. Brooke Jackson on 8/26/21.(jdyne,) (Entered: 08/26/2021)
08/27/2021	68	Witness List <i>Plaintiff's Pretrial Disclosures Per F.R.C.P. 26(a)(3)</i> by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 08/27/2021)
08/28/2021	69	BRIEF in Opposition to 62 MOTION in Limine to <i>Preclude Plaintiffs Post-Employment Evidence</i> , 63 MOTION in Limine to <i>Preclude Irrelevant Me Too-Type Evidence And Prohibited Character Evidence</i> filed by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 08/28/2021)
09/01/2021	70	REPLY to Response to 62 MOTION in Limine to <i>Preclude Plaintiffs Post-Employment Evidence</i> filed by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 09/01/2021)
09/01/2021	71	REPLY to Response to 63 MOTION in Limine to <i>Preclude Irrelevant Me Too-Type Evidence And Prohibited Character Evidence</i> filed by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C) (Martinez, Meghan) (Entered: 09/01/2021)

09/01/2021	72	MOTION to Strike <i>And Preclude Plaintiffs Three Witnesses Not Previously Or Properly Disclosed</i> by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4)(Martinez, Meghan) (Entered: 09/01/2021)
09/01/2021	73	BRIEF in Opposition to 72 MOTION to Strike <i>And Preclude Plaintiffs Three Witnesses Not Previously Or Properly Disclosed</i> filed by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 09/01/2021)
09/01/2021	74	Proposed Jury Instructions by Defendant Public Service Company of Colorado. (Attachments: # 1 Redline of Defendant's Proposed Jury Instructions)(Martinez, Meghan) (Entered: 09/01/2021)
09/01/2021	75	Proposed Verdict Form by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 09/01/2021)
09/01/2021	76	MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Telephone Trial Preparation Conference held on 9/1/2021. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/01/2021)
09/09/2021	77	TRANSCRIPT of Trial Preparation Conference held on September 1, 2021 before Judge Jackson. Pages: 1-65. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 09/09/2021)
09/11/2021	78	Exhibit List by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 09/11/2021)
09/15/2021	79	ORDER denying 56 Motion for Summary Judgment by Judge R. Brooke Jackson on 9/15/21.(jdyne,) (Entered: 09/15/2021)
09/17/2021	80	Plaintiff's Request for Reconsideration re: 72 MOTION to Strike <i>And Preclude Plaintiffs Three Witnesses Not Previously Or Properly Disclosed</i> Plaintiff's Request for Reconsideration Because of Defendant's Misrepresentations filed by Plaintiff Anita Martin. (Attachments: # 1 Exhibit Defendant's Discovery Responses and Emails, # 2 Exhibit Quintana Listed)(Sulton, Anne) Modified on 9/22/2021 to edit event type and edit document title. (sphil,). (Entered: 09/17/2021)
09/17/2021	81	NOTICE of Entry of Appearance by William F. Sulton on behalf of Anita MartinAttorney William F. Sulton added to party Anita Martin(pty:pla) (Sulton, William) (Entered: 09/17/2021)
09/17/2021	82	DESIGNATION OF DEPOSITION TESTIMONY of <i>Emir Ahmedic</i> by Defendant Public Service Company of Colorado. (Attachments: # 1 Designations List, # 2 Highlighted Transcript)(Martinez, Meghan) (Entered: 09/17/2021)
09/20/2021	83	MOTION for Sanctions <i>Re: Videotape of Deponent/Trial Witness Mary Regan</i> by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7)(Martinez, Meghan) (Entered: 09/20/2021)
09/21/2021	84	ORDER denying 83 MOTION for Sanctions <i>Re: Videotape of Deponent/Trial Witness Mary Regan</i> . The denial is without prejudice. The Court ordered that plaintiff counsel

		provide a copy, not an edited copy, to defense counsel. If plaintiff counsel provides the unedited copy by the close of business on Wednesday, September 22, 2021, there will be no sanction. If she does not, then the Court will consider a sanction, which could include witness preclusion and/or attorney's fees. By Judge R. Brooke Jackson on 9/21/2021. Text Only Entry(rbjsec.) (Entered: 09/21/2021)
09/21/2021	85	RESPONSE to 80 Plaintiff's Request for Reconsideration re: MOTION to Strike <i>And Preclude Plaintiffs Three Witnesses Not Previously Or Properly Disclosed</i> filed by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit 1)(Martinez, Meghan) Modified on 9/22/2021 (sphl,). (Entered: 09/21/2021)
09/21/2021	86	CERTIFICATE OF COMPLIANCE re 84 Order on Motion for Sanctions,, by Plaintiff Anita Martin. (Attachments: # 1 Exhibit Emails re Mary Regan Video)(Sulton, Anne) (Entered: 09/21/2021)
09/22/2021	87	ORDER denying 80 Plaintiff's Request for Reconsideration re: 72 MOTION to Strike <i>And Preclude Plaintiff's Three Witnesses Not Previously Or Properly Disclosed-Plaintiff's Request for Reconsideration Because of Defendant's Misrepresentations</i> . The Court declines to reconsider its previous order. However, because Rademacher and Mildenberger are on defendant's witness list, but defendant allegedly has not provided information affording the opportunity to subpoena them, plaintiff may use the depositions of the two witnesses if they are not produced live. Forty-five minutes is not "very short," and you should try to edit them down. The Court makes no finding at this time regarding whom may be called as a rebuttal witness. If the individual has testimony that legitimately rebuts evidence presented in defendant's case, the person likely will be permitted to testify. It would be appreciated if the lawyers would stop filing motions on the eve of trial. By Judge R. Brooke Jackson on 9/22/2021. Text Only Entry(rbjsec.) (Entered: 09/22/2021)
09/23/2021	88	Proposed Jury Instructions <i>and Verdict Form</i> by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 09/23/2021)
09/23/2021	89	Exhibit List by Defendant Public Service Company of Colorado. (Attachments: # 1 Defendant's Exhibit List)(Martinez, Meghan) (Entered: 09/23/2021)
09/23/2021	90	Witness List by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 09/23/2021)
09/24/2021	91	Witness List <i>Final</i> by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 09/24/2021)
09/24/2021	92	Exhibit List by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 09/24/2021)
09/24/2021	93	ORDER re: 82 Designation of Deposition Testimony filed by Public Service Company of Colorado. The Courts rulings can be found on the attached document. By Judge R. Brooke Jackson on 9/24/2021. (rbjsec.) (Entered: 09/24/2021)
09/26/2021	94	Proposed Jury Instructions by Plaintiff Anita Martin. (Sulton, William) (Entered: 09/26/2021)
09/27/2021	95	BRIEF <i>Defendant's Points and Authorities to Support that a Working Foreman Is Not a Supervisor, Management Employee, or Agent</i> by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(Martinez, Meghan) (Entered: 09/27/2021)
09/27/2021	96	MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day One held on 9/27/2021. Jury selected, opening statements given, evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/27/2021)

09/27/2021	97	Juror Strike Sheet - Unredacted - Level 3 - Viewable by Court Only. (jdyne,) (Entered: 09/27/2021)
09/27/2021	98	Juror Strike Sheet - redacted(jdyne,) (Entered: 09/27/2021)
09/28/2021	99	MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Two held on 9/28/2021. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/28/2021)
09/29/2021	100	MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Three held on 9/29/2021. Evidence and testimony presented, trial continued. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/29/2021)
09/30/2021	101	MINUTE ENTRY for proceedings held before Judge R. Brooke Jackson: Jury Trial Day Four completed on 9/30/2021. Evidence and testimony presented, closing arguments given, jury deliberates, JURY VERDICT. Trial concluded. Court Reporter: Sarah Mitchell. (jdyne,) (Entered: 09/30/2021)
09/30/2021	102	Jury Instructions - final instructions given 9/30/21 (jdyne,) (Entered: 09/30/2021)
09/30/2021	103	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (jdyne,) (Entered: 09/30/2021)
09/30/2021	104	JURY VERDICT - redacted(jdyne,) (Entered: 09/30/2021)
09/30/2021	105	FINAL JUDGMENT in favor of the defendant Public Service Company of Colorado and against the plaintiff Anita Martin by Clerk on 9/27/21. (jdyne,) (Entered: 09/30/2021)
10/13/2021	106	NOTICE OF APPEAL as to 105 Judgment by Plaintiff Anita Martin (Filing fee \$ 505, Receipt Number ACODC-8121262) (Sulton, Anne) (Entered: 10/13/2021)
10/14/2021	107	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 106 Notice of Appeal filed by Anita Martin to the U.S. Court of Appeals. (Retained Counsel, Fee paid,) (Attachments: # 1 Preliminary Record, # 2 Docket Sheet)(sphil,) (Entered: 10/14/2021)
10/14/2021	108	Proposed Bill of Costs by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit A, # 2 Exhibit A-1, # 3 Exhibit A-2, # 4 Exhibit A-3, # 5 Exhibit A-4, # 6 Exhibit A-5, # 7 Exhibit A-6, # 8 Exhibit A-7, # 9 Exhibit A-8)(Martinez, Meghan) (Entered: 10/14/2021)
10/14/2021	109	USCA Case Number 21-1354 for 106 Notice of Appeal filed by Anita Martin. (sphil,) (Entered: 10/15/2021)

10/18/2021	110	NOTICE by Clerk re: Bill of Costs Hearing re: 108 Proposed Bill of Costs. As set in the Proposed Bill, the hearing for this matter will be held on Oct. 27, 2021 at 9:30 a.m. MST. The hearing will be held IN PERSON - the parties are directed to have counsel asserting the Proposed Bill of Costs and opposing counsel presenting objections be physically present for the hearing. Co-counsel can appear by telephone. The hearing will be held in Courtroom C204 (2nd floor) of the Byron Rogers U.S. Courthouse, 1929 Stout Street, Denver [NOT the Arraj Courthouse]. The Clerk reminds the parties that a Statement of Conferral must be filed no later than the day before the hearing in order to confirm the attempts to reach a settlement on either some or all of the requested costs, per local rule LCivR 54.1, and to confirm the parties have utilized the Clerk's Guide to Bills of Cost Hearings (see attached) in their discussions. Finally, the Clerk strongly encourages the parties to reach an agreement as to individual costs items - or preferably - a global settlement, in light of the Rule One directive that the court and PARTIES work to secure the just, speedy, and inexpensive determination of every action and proceeding. (ashee) (Entered: 10/18/2021)
10/25/2021	111	STATEMENT of <i>Conferral Regarding Costs</i> by Defendant Public Service Company of Colorado. (Martinez, Meghan) (Entered: 10/25/2021)
10/27/2021	112	OBJECTIONS to 108 Proposed Bill of Costs, by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 10/27/2021)
10/27/2021	113	Costs Taxed by Clerk in the amount of \$8,251.55 against Plaintiff Anita Martin and in favor of Defendant Public Service Company of Colorado. Hearing held Oct. 27, 2021, 9:30 a.m. in Courtroom C204, Byron Rogers U.S. Courthouse. Appearance by Defense counsel; no appearance by Plaintiff's counsel, but counsel did file Objections [ECF No. 112] which were reviewed by the Clerk and discussed at the hearing. Plaintiff's counsel also left a voicemail with the Clerk. (ebutl) (Entered: 10/27/2021)
10/27/2021	114	Proposed Bill of Costs <i>Supplement</i> by Defendant Public Service Company of Colorado. (Attachments: # 1 Exhibit A)(Martinez, Meghan) (Entered: 10/27/2021)
10/27/2021	115	TRANSCRIPT ORDER FORM re 106 Notice of Appeal by Plaintiff Anita Martin (Sulton, Anne) (Entered: 10/27/2021)
10/28/2021	116	LETTER TO USCA and all counsel certifying the record is complete as to 106 Notice of Appeal filed by Anita Martin. A transcript order form was filed stating that a transcript is not necessary. (Appeal No. 21-1354) Text Only Entry. (sphil,) (Entered: 10/28/2021)
11/10/2021	117	TRANSCRIPT ORDER FORM re 106 Notice of Appeal by Defendant Public Service Company of Colorado (Martinez, Meghan) (Entered: 11/10/2021)
11/24/2021	118	REPORTER TRANSCRIPT ORDER FORM filed by Sarah Mitchell re: 106 Notice of Appeal. Transcript due by 12/19/2021. (nrich) (Entered: 11/24/2021)
12/10/2021	119	Partial TRANSCRIPT of Jury Trial Excerpt: Discussion of Exhibit XXX.1 held on September 28, 2021 before Judge Jackson. Pages: 1-3. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smic,) (Entered: 12/10/2021)

12/10/2021	120	Partial TRANSCRIPT of Jury Trial Excerpt: Discussion on Jury Instructions held on September 27, 2021 before Judge Jackson. Pages: 1-7. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2021)
12/10/2021	121	Partial TRANSCRIPT of Jury Trial Excerpt: Discussion on Jury Instructions held on September 28, 2021 before Judge Jackson. Pages: 1-34. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2021)
12/10/2021	122	Partial TRANSCRIPT of Jury Trial Excerpt: Discussion on Jury Instructions held on September 29, 2021 before Judge Jackson. Pages: 1-54. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/10/2021)
12/13/2021	123	Partial TRANSCRIPT of Jury Trial Excerpt: Closing Arguments held on September 30, 2021 before Judge Jackson. Pages: 1-40. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 12/13/2021)
01/04/2022	124	Partial TRANSCRIPT of Jury Trial - Verdict Portion held on September 30, 2021 before Judge Jackson. Pages: 1-5. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the

		Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smitc,) (Entered: 01/04/2022)
01/31/2022	125	SATISFACTION OF JUDGMENT re 105 Judgment entered In favor of Public Service Company of Colorado Against Anita Martin <i>all costs awarded paid in full</i> by Plaintiff Anita Martin. (Sulton, Anne) (Entered: 01/31/2022)
07/28/2022	126	USCA Order and Judgment as to 106 Notice of Appeal filed by Anita Martin : (USCA Case No. 21-1354) (This document is not the Mandate) (sdunb,) (Entered: 08/01/2022)
08/19/2022	127	MANDATE of USCA as to 106 Notice of Appeal filed by Anita Martin, 126 USCA Order/Opinion/Judgment : (USCA Case No. 21-1354) (sphil,) (Entered: 08/22/2022)

PACER Service Center			
Transaction Receipt			
04/06/2026 17:50:13			
PACER Login:	chelland	Client Code:	
Description:	Docket Report	Search Criteria:	1:20-cv-00076-RBJ
Billable Pages:	11	Cost:	1.10
Exempt flag:	Exempt	Exempt reason:	Exempt Court Order